

		Corrective Deed. Cross-Defendant's evidence on property tax liability is moot, because Cross-Complainants failed to produce sufficient evidence on that point. Cross-Defendant failed to meet her shifted burden showing a triable issue of material fact. The motion is therefore GRANTED. Cross-Complainants shall give notice of this ruling.
3	Wyant vs. Marks	Defendant A Better Life Recovery, LLC's ("Defendant") unopposed Application for Pro Hac Vice Admission of Daria A. Porta (Porta) is GRANTED. Defendant has complied with the requirements of CRC Rule 9.40. The court hereby approves the application and orders that Porta may be admitted on a pro hac vice basis in this case. Defendant to give notice.
4	Saracino v. Rzakhanova	The motion to strike the complaint of plaintiffs Katalena Saracino and Mohammed Awad (collectively, Plaintiffs) pursuant to Code of Civil Procedure section 425.16 filed by defendant Gulzhanat Rzakhanova (Defendant) is DENIED. "Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385, 205, fn. omitted.) Only a claim that satisfies both prongs - i.e., that arises from protected speech or petitioning and lacks even minimal merit - can be stricken under the SLAPP statute. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88-89; <i>Jarrow Formulas, Inc. v. LaMarche</i> (2003) 31 Cal.4th 728, 733.) Prong One: "At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them." (<i>Baral, supra</i>, 1 Cal.5th at p. 396.) "A claim arises from protected activity within the meaning of section 425.16(b)(1) if the activity underlies or forms the basis for the claim." (<i>Newport Harbor Offs. & Marina, LLC v. Morris Cerullo World Evangelism</i> (2018) 23 Cal.App.5th 28, 44.) Where there are "mixed" causes of action involving both protected and nonprotected activity, it is the moving party's burden to identify in the motion the allegations of protected activity and the claims arising from it. A motion directed only to an entire complaint may be denied if some claims involve nonprotected activity. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, §7:772, citing <i>Baral, supra</i>, 1 Cal.5th at 391; see also, <i>Park v. Nazari</i> (2023) 93 Cal.App.5th 1099, 1108 n.5.) Here, in the notice of motion, Defendant moved for an order striking Plaintiffs' complaint in its entirety and dismissing this action with prejudice. (See Notice of Motion at p. 2:1-3.) Defendant maintained in the memorandum of points and authorities that Plaintiffs' entire

complaint arises from protected activity and the entire complaint should thus be stricken. (See e.g., Motion at p. 9:2-3, 14:14-19.) Defendant did not identify any limited set of allegations in the complaint that should be stricken if the entire complaint is not.

The court concludes the complaint contains claims that do not arise from protected activity. For instance, the complaint alleges Defendant released a private, intimate recording of Plaintiff Awad which caused Plaintiffs to suffer humiliation, fear, and harm to their reputation and emotional well-being. (See Compl., ¶¶ 16-20.) Plaintiffs also allege in the complaint, under the heading "Trespass, Property Damage, and Theft," that Defendant unlawfully entered their residence and removed or destroyed property, including clothing and furniture. (See Compl., ¶ 34.) Defendant did not address these allegations or show how such allegations can be deemed to pertain to protected activity. Furthermore, although the caption of the complaint states the complaint is one for "defamation of character," the body of the complaint specifically states at paragraph 50 that "Plaintiffs assert civil causes of action for" Fraud, Defamation (Libel & Slander), Intentional Infliction of Emotional Distress, Invasion of Privacy, Negligence, and Trespass and Conversion. (Compl., ¶ 50.)

Defendant completely failed to address these allegations and claims. In the Reply, Defendant argues Plaintiffs' opposition improperly attempts to rewrite the complaint which Defendant asserts is based on a defamation theory. Defendant is correct that unpled theories cannot defeat an anti-SLAPP motion. (See *Medical Marijuana, Inc. v. ProjectCBD.com* (2020) 46 Cal.App.5th 869, 883.) However, as discussed above, Plaintiffs' complaint plainly shows that Plaintiffs are asserting other causes of action in addition to the defamation claim. Defendant failed to offer any discussion as to how these additional causes of action arise from protected activity. In the Reply, Defendant reiterated her request that the entire complaint be stricken. (See Reply at p. 10:9-11.)

Defendant also appears to acknowledge that the complaint contains allegations pertaining to nonprotected activity. (See Motion at p. 8:3-7; p. 11:22-24.) Despite appearing to acknowledge these allegations of nonprotected activity, Defendant nonetheless maintained her request to strike the entire complaint. To the extent Defendant contends the allegations related to nonprotected activity fail to state a claim, Defendant has not shown how the court can properly dismiss such claims pursuant to an anti-SLAPP motion. These challenges appear more appropriately raised on a demurrer or motion for judgment on the pleadings.

Based on the foregoing, Defendant failed to meet her burden on prong one as Defendant has not shown the entirety of the complaint arises from protected activity.

Accordingly, the motion is **DENIED**.

Defendant's Request for Judicial Notice: As to Exhibits 1, and 3 through 6, and Defendant's supplemental request for judicial notice,

		the request is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d) [court records]; <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Defendant has not shown judicial notice of the transcript (Ex. 2) is proper. Defendant's request for judicial notice as to Exhibit 2 is thus DENIED. <u>Plaintiffs' Request for Judicial Notice:</u> To the extent Plaintiffs seek judicial notice of court pleadings, filings, and orders, the request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d) [court records]; <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Plaintiffs' request for judicial notice is DENIED to the extent it seeks judicial notice of declarations and evidentiary materials, including the private investigator report, as Plaintiffs have not shown such materials are proper subjects of judicial notice. <u>Evidentiary Objections:</u> Defendant's Objection No. 1 is SUSTAINED. Defendant's Objection Nos. 2-3 are OVERRULED. Defendant's Objection Nos. 4-20 are SUSTAINED as to lack of authentication. <u>Request to Strike, Seal, or Redact (ROA 37):</u> Given the court's ruling to sustain Defendant's objections to Plaintiffs' exhibits, it does not appear to the court that a separate order striking the materials as requested is necessary. To the extent Defendant seeks an order sealing the materials under California Rules of Court, rules 2.550 and 2.551, the request is not properly supported as no declaration was submitted with the request. (See CRC rule 2.551(b)(1) [motion to seal must be accompanied by a declaration containing facts sufficient to justify the sealing].) The request to seal or redact is DENIED without prejudice. Counsel for Defendant shall give notice.
5	Cali Dumpling Management, LLC v. Star Leaf Oto, et. al	The application by plaintiff Cali Dumpling Management, LLC for a right to attach order against defendant Star Leaf Oto, LLC is DENIED, without prejudice. There is no proof of service in the Court's file showing that either the complaint or the application have been served on Star Leaf Oto, LLC. (Code of Civil Procedure §482.070; Cal. Rules of Court, rule 3.1300(c) - proof of service must be filed at least five court days prior to the hearing.) Plaintiff shall give notice.
6	Jahangiri v. Vahidramezani	Cont. to 8/31.
7	Hallett v. Waterfront Resort	Before the Court at present is the "Motion For Order Requiring Vexatious Litigant And Pro-Per Plaintiff Darrell Hallett To Furnish Security Pursuant To CCP §391.3," filed on 12/23/25 by defendants